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Judgement Sheet

IN THE LAHORE HIGH COURT

JUDICIAL DEPARTMENT

Writ Petition No.10163 of 2026
(*Abdul Qadeer v. The State, etc.*)

JUDGEMENT

Date of hearing:	09.04.2026
Petitioner(s) by:	Ch. Muhammad Sarwar Sehr, Advocate
State by:	Rana Umair Ibrar, AAG
Respondent by:	Sardar Abdul Qadoos Dogar, Advocate/Legal Advisor for Punjab Food Authority

MUHAMMAD JAWAD ZAFAR, J.: Through this constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan 1973 (“**Constitution**”), Abdul Qadeer (“**petitioner**”) has impugned the order dated 15.01.2026 (“**impugned order**”) passed by the learned Senior Civil Judge (Criminal Division), Kasur,¹ whereby the learned Special Court dismissed the application of the petitioner for the release of vehicle bearing registration No.BK-320 (“**vehicle**”), which was taken into possession and seized by the Assistant Food Safety Officer (“**AFSO**”), and thereafter, having crime report bearing No.3178/2025, dated 18.10.2025, for offence under Section 22-A, 23, 24 of the Punjab Food Authority Act, 2011, (“**Act**”), registered with Police Station Saddar Kasur, District Kasur (“**crime report**” or “**FIR**”).

2. The arguments, pro and contra, of the learned counsel for the parties were heard with anxious consideration, and the material available on record was scrutinized with their able assistance.

3. Under the Food Authority Act, there are “three regulatory regimes”, namely the FSO, FA, and the Special Court.² Each regulatory authority has its own distinct function. FSO has been defined in Section 12 of the Food Authority Act, while powers

¹ The learned Judicial Magistrate, Section 30, was designated as a “Special Court” in terms of Section 40 of the Punjab Food Authority Act 2011 (“**Food Authority Act**” or “**Act of 2011**”), as such, is hereinafter referred to as the “Special Court”.

² See “*Lung Fung Chinese Restaurant*” (PLD 2021 Supreme Court 684).

exercisable by FSO are specified in Section 13 of the Act of 2011. FA exercises the power mentioned in Section 7 of the Act *ibid*, and its jurisdiction is specified in Section 39 of the Act of 2011. Section 13(1) of the said Act pertains to seizures and stipulates in its clause (b) that the FSO may seize ‘*any food, apparatus or utensil*’ or, according to clause (c), enter or seal any “premises”, and while doing so, as per subsection (2) of Section 13, is under a bounden duty to prepare a statement ‘*describing the food, apparatus, utensil or vehicle seized*’ and deliver a copy thereof to the person from whom the item was so seized. The remedy against such seizures is provided under subsection (3) thereof, specifically, filing an application before the Special Court, within seven (7) days of the seizure. On receipt of the said application, the Special Court can either confirm seizure, which shall result in the items so seized being forfeited, wholly or partially, to the FA in terms of Section 13(3) of the Act of 2011, in which eventuality the items so seized shall stand forfeited in favour of FA as per subsection (4), or have FSO return the seized items to the person from whom they were taken from. Pertinently, where no application, in terms of subsection (3), has been filed before the Court within seven (7) days of the seizure, the items seized stand automatically forfeited in favour of FA under Section 13(5) of the Food Authority Act. At this junction, it is imperative to state that a careful and purposive construction of Section 13 of the Act of 2011 makes it evident that the term “vehicle”, which falls within the definition of “premises” under Section 2(t), has not been incorporated with the penal consequences as envisaged under subsection (5) of Section 13 but does find express mention in the preceding subsections thereof. The legislature, in its wisdom, has refrained from expressly including it within the ambit of automatic forfeiture contemplated in circumstances where the person from whom the property was so seized fails to approach the Special Court within the duration prescribed in subsection (3). This deliberate omission is of grave significance and indicative of legislative intent, and the same suggests that seizure of a “vehicle”, or “vehicles” where there is more than one, was not meant to be subject to automatic

forfeitures in terms of Section 13(5). To construe otherwise would be erroneous, considering the settled canon of statutory interpretation that the Courts cannot, under the guise of interpretation, either add or omit even a single a word into any provision of a statute, which in this case has been consciously, and despite express mention in the preceding subsections, expressly excluded. Nothing could be added to a statute or a rule in order to rewrite the same, as that would be against the established principles of statutory interpretation.³ Further, if the item is not destroyed or is returned to the claimant on an interim basis, the Special Court still possesses the power to pass an order pertaining to the said item or items after the conclusion of the trial in terms of Section 36 of the Act of 2011.

4. In other words, the Special Court may pass an order for interim custody of seized item(s) pending the conclusion of the trial. The said provision allows for the release of a seized item(s) before the completion of legal proceedings, thereby enabling the owner of the item(s) to apply for the restoration of the same on demonstrating lawful grounds and requisite documents to the Special Court, without first having to await the conclusion of a prolonged legal process before retrieving the possession of the items so seized. It is also trite that the release of seized items during the pendency of proceedings neither absolves the accused nor impairs the course of justice. On the contrary, it is a measure to prevent needless deterioration or deprivation of the property, subject to furnishing the surety bond, and without prejudice to the final determination of guilt and forfeiture, or otherwise of the property seized. Similar provisions exist under the Code of Criminal Procedure 1898 (“**Code**” or “**Cr.P.C**”), which governs the release of case property during the pendency of trial or inquiry. In “Ashan Ali Dawach v. The State”,⁴ it was observed regarding Section 516-A of the Code that:

‘application moved under Section 516-A Cr.P.C. must be decided expeditiously after providing a fair chance to contest the

³ See “Khan Gul Khan v. Daraz Khan” (2010 SCMR 539); “Deputy Registrar/Representative of Employees of Federal Shariat Court v. Federation of Pakistan” (PLD 2019 Islamabad 591); and, “Crescent Jute Products Ltd. v. Government of the Punjab” (PLD 2004 Lahore 686).

⁴ 2025 SCMR 1041.

legality of the seizure and the order must be based on cogent reasons as to why the vehicle should be released or why it should not be released, rather than deferring the application for an indefinite period or disposing it of in a slipshod or cursory manner. The discretion should be exercised judicially while determining the question of right and entitlement to take possession of property subject to furnishing bond with or without surety, equivalent to the worth of the property allowing to be retained on superdari, and the terms and conditions wreaked by the Court must be recounted in the bond unambiguously. According to the command and mandate of Article 23 of the Constitution of the Islamic Republic of Pakistan, 1973, ("Constitution"), every citizen has a right to acquire, hold, and dispose of property in any part of Pakistan, subject to the Constitution and any reasonable restrictions imposed by law in the public interest. All at once, it is engrained and embedded under Article 24 of the Constitution that no person shall be deprived of his property save in accordance with the law with certain exceptions already jotted down in the Article itself.

11. While exercising discretionary powers for allowing or disallowing an application for interim custody, the Court must also consider the constitutional provisions to ensure that withholding custody without any rhyme or reason does not flout or violate or infringe upon fundamental rights as enshrined under the Constitution. On one hand, the Court must aptly uphold a good sense of implementation of law, but on the other hand, it is obligated to shield and safeguard the rights of individuals in order to ensure justice without protracted detentions or delays of such interlocutory applications, as long as it does not compromise the legal proceedings. However, it is clarified that the scheme of law permitting the interim custody of vehicle on superdari neither amounts to prejudice the trial, nor gives a clean chit to the accused, nor does it relieve or exempt the owner/recipient of custody from pending legal proceedings. However, the duration of the interim custody may continue subject to the bond and surety till the final fate of the case, till then, the person allowed interim custody is duty-bound under the law to attend, participate, and produce the vehicle as and when directed by the Court’.

5. In the case at hand, the impugned order operates on an erroneous presumption that since the application for the release of “vehicle” was filed after lapse of seven (7) days, the application was time barred and the “vehicle”, by that time, already stood

automatically forfeited in favour of the FA. Reason being that the principle of automatic forfeiture under the existing scheme of the Act of 2011 does not apply to “vehicles”. All the same, the “vehicle” seized cannot be termed as “case property” in the given facts and circumstances of the case, especially considering that the vehicle in question was neither used for the commission of an offence,⁵ nor is it itself an adulterated article mere possession whereof triggers any penal provision of the Act of 2011. The provision of Section 13(3) is intended to minimize inconvenience, as in this case, where it was emphasized that the vehicle seized is lying dormant under the open sky, depreciating in both condition and value, and if the same is to be returned to the FA or FSO, it is likely to be misused, get damaged, deteriorate, and diminish of its value.⁶ Even *arguendo*, if the vehicle is said to be case property, the petitioner is not an accused in the crime report but merely the owner of the vehicle who had rented out the same; therefore, it cannot be stated that he was aware of the transportation of any substance. Likewise, the petitioner has submitted the relevant documents of ownership based on which he has claimed possession of the vehicle, and there not being any rival claimant,⁷ allowing the seized vehicle to remain in the custody of the FA would amount to contravention of the cardinal rights of the petitioner in terms of Article 23 and 24 of the Constitution. This may be examined from another perspective. If the learned Special Court concludes, after the recording of evidence and conclusion of trial, that the seized vehicle ought to be confiscated and or forfeited, it may pass an order at that junction under Section 36 of the Act of 2011. Besides the point, but it is not the items seized which are evidence, but it is the report under Section 11(3) which is to be presented as such. In view thereof, the learned Special Court has acted with impulse, and the error in the impugned order is apparent on the face of the record and also amounts

⁵ See “*Zaheer Abbas v. Muzafar Khan*” (2016 YLR Note 21 Lahore).

⁶ See “*Sheikh Sagab Kapoor v. The State*” (2009 YLR 602 Lahore).

⁷ **Note:** It is a settled principle of law that in case, there is no rival claimant for superdari of the vehicle then the vehicle should ordinarily be given on *superdari* to the person from whom it is taken into possession by the investigating agency. For reference, see “*Muhammad Ajmal v. The State*” (2025 MLD 533 Quetta).

to illegal exercise of its undoubted jurisdiction.⁸ To this end, the honourable larger bench in the case of “Rahim Shah v. The Chief Election Commissioner of Pakistan”⁹ held that:

‘Cases of no evidence, bad faith, misdirection or failure to follow judicial procedure, etc. are treated as acts done without lawful authority and vitiate the act done or proceedings undertaken by the tribunal on this ground. Where the High Court is of opinion that there is no evidence proper to be considered by the inferior tribunal in support of some point material to the conviction or order, certiorari will be granted’.

6. Insofar as the objection to the maintainability of this petition is concerned, suffice to observe that it is trite that where there was either absence or excess of jurisdiction or the order under challenge suffered from patent illegality on the face of the record a writ of certiorari could be granted even though the remedy, by way of appeal, had not been availed of.¹⁰ Reference in this regard is placed on the case of “Adeel-ur-Rehman v. Federation of Pakistan”,¹¹ the honourable Supreme Court held that a ‘Constitutional Petition is competent if an order is passed by a Court or authority by exceeding its jurisdiction even if the remedy of appeal or revision against such order is available’ and the case of “Riaz Hussain v. Board of Revenue”,¹² it was *inter alia* held that:

‘where any tribunal in disregard of the law which confers jurisdiction decides a case in which the error becomes so apparent on the face of record that no judicial mind would accept it as an order passed in proper exercise of jurisdiction, the High Court would be justified to interfere under Article 199 of the Constitution’.

7. As a corollary, this constitutional petition is **accepted**;

⁸ See “Atif Riaz v. Federation of Pakistan” (PLD 2023 Lahore 536).

⁹ PLD 1973 Supreme Court 24 (5-MB).

¹⁰ See “Abad Sharif alias Muhammad Abad v. Javed Tariq” (2006 SCMR 1356); “Ghulam Mustafa Jatoi v. Additional District and Sessions Judge” (1994 SCMR 1299); “Nagina Silk Mill, Layallpur v. The Income-Tax Officer” (PLD 1963 Supreme Court 322); “Pakistan v. Ziauddin” (PLD 1962 Supreme Court 440); “Messrs S.A. Haroon v. The Collector of Customs, Karachi” (PLD 1959 Supreme Court 177); and, “Kinza Anwar v. Office of the Ombudsman for Protection against Harassment of Women at the Workplace” (2022 CLC 1477 Islamabad).

¹¹ 2005 PTD 172 Supreme Court.

¹² 1991 SCMR 2307.

the impugned order is **set-aside**; and, the vehicle is directed to be released to the petitioner, subject to: (1) submission of surety bond to the tune of PKR. 1,000,000/- with one surety in the like amount to the satisfaction of the learned trial Court; and (2) verification of ownership. No order as to costs.

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Approved for reporting.

Judge

*Ejaz/**